

Court No. - 29

Case :- WRIT - C No. - 14541 of 2019

Petitioner :- Satish Chandra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Arun Kumar Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

On the request of Sri Baleshwar Chaturvedi, learned counsel for the Vidyut Vitran Nigam Ltd. put up tomorrow i.e.26.04.2019 as fresh by which time he may seek instructions why despite sanction and direction to install the electricity connection the same is not being done.

Order Date :- 25.4.2019

piyush

Court No. - 29

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Petitioner :- Satish Chandra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Arun Kumar Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

The petitioner was sanctioned electricity connection for the purposes of running a tube-well on the agricultural land. However, the same was not being installed.

On writ petition being filed Sri Baleshwar Chaturvedi, learned counsel for the Vidyut Vitran Nigam Ltd. was granted time to seek instructions. He has received instructions and according to him the land is the joint land of several persons and the co-owners have not consented for the grant of electricity connection in favour of the petitioner rather the affidavit of no objection filed on their behalf have been found to be false and some litigation between them is pending.

The attention was drawn to Clause 4.4 of the U.P. Electricity Supply Code 2005 and from the said Clause we do not find that it imposes no condition of getting a no objection from the other co-owners.

In view of above, we direct Sri Baleshwar Chaturvedi to file counter affidavit within two weeks.

Sri S.K. Pandey, learned counsel, who contends that he wants to oppose the petition on behalf of the third parties or co-owners may move appropriate application in the registry.

List on 16th May, 2019.

Order Date :- 26.4.2019

piyush

Court No. - 1

Case :- WRIT - C No. - 14541 of 2019

Petitioner :- Satish Chandra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Arun Kumar Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,Santosh Kumar Pandey

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Sri Arun Kumar Tripathi, learned counsel for the petitioner is present along with Sri Baleshwar Chaturvedi, learned counsel for power corporation.

The case is passed over on the illness slip of Sri Santosh Kumar Pandey, learned Advocate, who has filed impleadment application.

List peremptorily in the next cause list.

Order Date :- 1.11.2019

Nadeem Ahmad

(Ajit Kumar,J.) (Ramesh Sinha,J.)

Court No. - 1

Case :- WRIT - C No. - 14541 of 2019

Petitioner :- Satish Chandra

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Arun Kumar Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Santosh Kumar Pandey

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri A.K. Tripathi, learned counsel for the petitioner, Sri Ashutosh Dwivedi holding brief of Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of respondent nos. 2, 3 and 4 and learned Standing Counsel for the State.

Sri S.K. Pandey, Advocate, who has filed application for impleadment of one Ahibaran Singh-co-tenure holder as respondent in the present case, is not present even in the revised call.

By means of this petition, the petitioner has prayed for grant for electricity connection to his premises, however, the same is not being granted on the ground that he is one of the co-tenure holders and he has not been able to supply no objection from his co-tenure holder. As per U.P. Supply Code, 2005 the electricity connection can be granted by getting an indemnity bond prescribed vide Annexure-4.2 of the Supply Code.

In such view of the matter, the writ petition is disposed of with a direction that in case the petitioner furnishes indemnity bond vide annexure 4.2 of the U.P. Supply Code, 2005, the request of the petitioner for grant of new electricity connection shall be considered and accordingly, the order shall be passed within a period of four weeks from the date of production of a certified copy of this order along with the indemnity bond and application in that regard. However, before passing any order, the Executive Engineer-respondent no. 3 shall hear the objections, if any, filed before it by other co-tenure holders.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 11.11.2019

Shiraz